

GAUCI & MAISTRE
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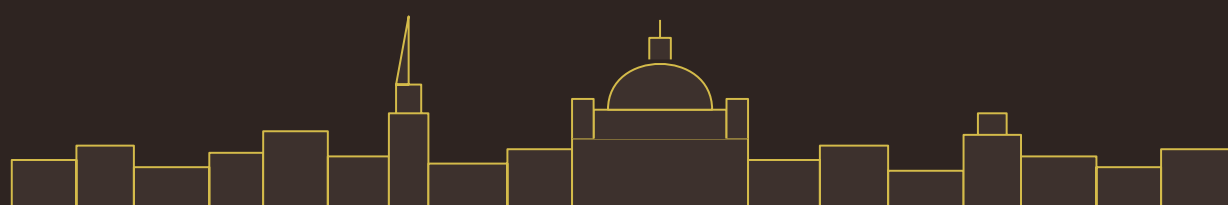
A D V O C A T E S

PRIVATE CLIENT · TAX & RESIDENCE

Global *Residence* Programme 2026



*Special tax status in Malta for non-EU nationals —
fees, conditions & the 2026 deadline*



2026 EDITION

CURRENT AS AT 28 SEPTEMBER 2026

GLOBAL RESIDENCE PROGRAMME RULES

S.L. 123.148

01 — THE PROGRAMME

A flat 15% on foreign income received in Malta

The Global Residence Programme (GRP) grants a special tax status to non-EU nationals who buy or rent a qualifying home in Malta. Qualifying foreign income received in Malta is taxed at a flat 15%, subject to a minimum annual tax of €15,000. Residence permission is a separate matter, applied for with Identità.

15%TAX ON QUALIFYING
FOREIGN INCOME
RECEIVED IN MALTA**€15,000**MINIMUM ANNUAL
TAX**€220k**LOWEST
QUALIFYING
PURCHASE**31.12.26**LAST DATE TO
APPLY UNDER GRP

Principal advantages

- ◇ Qualifying foreign-source income received in Malta is taxed at a flat **15%**.
- ◇ Foreign income that is not received in Malta is not taxed in Malta.
- ◇ Foreign capital gains are not taxed in Malta, even if received in Malta.
- ◇ No minimum stay in Malta, provided the beneficiary does not spend more than 183 days in any one other jurisdiction in a year.
- ◇ Beneficiaries may apply separately to Identità for a residence permit, which in turn allows visa-free travel within the Schengen Area (90 days in any 180-day period).
- ◇ An English-speaking EU jurisdiction with excellent schools, healthcare and a Mediterranean way of life.

Who may apply

- ◇ Nationals of a country outside the EU, EEA and Switzerland.
- ◇ Persons who are not long-term residents as defined in the Rules, including persons who have applied for that status.
- ◇ Persons not benefiting from the other special tax programmes specified in the Rules, which cannot be combined with the GRP.
- ◇ Persons who hold or rent a qualifying property in Malta as their principal residence, with stable and regular resources.
- ◇ Holders of a valid travel document and health insurance covering all risks across the EU; able to communicate in English or Maltese.
- ◇ Fit and proper persons who satisfy the Commissioner for Revenue's due diligence.

A tax status, not a residence permit. GRP approval is granted by the Commissioner for Revenue and does not itself issue a residence permit. Identità operates a separate application process for qualifying beneficiaries. Clients seeking permanent residence should consider the Malta Permanent Residence Programme.

Apply by 31 December 2026

The Individual Tax Programme Rules, 2026 (Legal Notice 195 of 2026) replace the GRP from 1 January 2027 with a new Global Resident Status on materially different terms. A special tax status granted, or an application submitted, on or before 31 December 2026 may continue under the existing GRP rules until 31 December 2031, subject to approval and continued compliance.



Current GRP compared with the new Global Resident Status

	GRP — APPLY BY 31.12.2026	GLOBAL RESIDENT STATUS — FROM 1.1.2027
Minimum annual tax	€15,000	€35,000
Application fee	€6,000 €5,500 for owned property in the specified southern localities, with the final deed submitted with the application	€8,500
Minimum property purchase	€275,000 €220,000 in the specified southern localities or Gozo	€700,000
Minimum annual rent	€9,600 €8,750 in the specified southern localities or Gozo	€14,000
Validity	Existing GRP rules apply until 31.12.2031	Five-year periods, renewable for a €2,500 fee
Tax on qualifying foreign income received in Malta	15%	15%

The new regime changes eligibility as well as costs. For example, its definition of dependants does not include the current GRP category of dependent brothers, sisters and ascending relatives.

Actearly. A complete application must be prepared and filed through an Authorised Registered Mandatary before the deadline. We will advise each client on their position after 31 December 2031.

03 — QUALIFYING PROPERTY

Property requirement

The beneficiary must own or rent a qualifying property in Malta, which must serve as their principal residence. The applicable minimum depends on the property's location.

LOCATION	MINIMUM PURCHASE	MINIMUM ANNUAL RENT
Malta (general)	€275,000	€9,600
Specified southern localities of Malta, or Gozo	€220,000	€8,750

"Southern localities" means the localities specified in the Rules, not the south of Malta in general. We confirm whether a particular property qualifies.

- ◇ The property must be the beneficiary's principal residence worldwide, and dependants must reside with the beneficiary in it.
- ◇ It may be occupied only by the beneficiary, their dependants and approved household staff; it may not be let or sublet.
- ◇ Leases must be for a minimum term of twelve months.
- ◇ The property must be secured, and its documents submitted, within twelve months of the letter of intent, before the status is confirmed.
- ◇ Acquisitions by non-EU nationals may require an AIP permit unless in a Special Designated Area; duty and notarial fees apply.
- ◇ Where the property is sold or the lease ends, a replacement qualifying property must be secured.

04 — FEES

Schedule of fees

ITEM	WHEN PAYABLE	AMOUNT
Application fee Non-refundable	On submission of the application	€6,000
Reduced application fee Only for owned property in the specified southern localities, where the property has been purchased and the certified final deed is submitted with the application. Not available for Gozo or rented property.	On submission of the application	€5,500
Minimum annual tax Not pro-rated: the full amount applies in the first year and in the year of cessation	By 30 April of the year preceding the relevant year of assessment; in the first year, before the status is granted if granted after 30 April	€15,000

Not included: the property itself, duty on documents and notarial costs, residence permit fees, health insurance, and our professional fees, which are quoted separately upon engagement.

05 — TAXATION

How beneficiaries are taxed

Qualifying foreign income received in Malta is taxed at a flat 15%, and foreign income not received in Malta is not taxed here. The €15,000 minimum annual tax relates to that qualifying foreign income; tax on any Malta-source income is payable in addition.

TYPE OF INCOME	TREATMENT IN MALTA	RATE
Qualifying foreign income received in Malta	Taxed at a flat rate, subject to the €15,000 minimum	15%
Foreign income not received in Malta	Not taxed in Malta	0%
Foreign capital gains	Not taxed in Malta, whether or not received in Malta	0%
Malta-source income	Taxed separately under the Rules, in addition to the minimum	35%

Minimum annual tax

€15,000

Illustration A

€60,000 of qualifying foreign income received in Malta

Tax at 15% €9,000

Minimum annual tax €15,000

Tax payable €15,000

Illustration B

€200,000 of qualifying foreign income received in Malta

Tax at 15% €30,000

Minimum annual tax €15,000

Tax payable €30,000

Illustrations are simplified and assume no Malta-source income and no foreign tax relief. Relief for foreign tax may be available under Malta's double tax treaties or unilateral relief, but cannot reduce the tax payable below the €15,000 minimum. The minimum is not pro-rated in the first year or the year of cessation. Tax outcomes depend on individual circumstances; specific tax advice should be obtained.

06 — YOUR FAMILY

Who may be included

- ◇ **Spouse**, or partner in a stable and durable relationship.
- ◇ **Children under 18**, including adopted children.
- ◇ **Adult children** under 25 who are not economically active.
- ◇ **Adult children unable to maintain themselves** because of serious illness or disability — a separate category.
- ◇ **Dependent brothers and sisters**.
- ◇ **Ascending relatives**, such as parents and grandparents, who are dependent on the beneficiary.
- ◇ All dependants must reside with the beneficiary in the qualifying property.

Tax treatment differs by category

FAMILY MEMBER

CURRENT GRP TAX TREATMENT

Beneficiary, spouse, qualifying minor children, and qualifying adult children unable to maintain themselves because of serious illness or disability

Within the special 15% treatment and the shared minimum-tax calculation

Unmarried partner, ordinary adult dependent children, dependent brothers and sisters, and ascending relatives

Taxed separately under the applicable ordinary rules

07 — CONTINUING CONDITIONS

Keeping the status

- ◇ Do not spend more than 183 days in any one other jurisdiction in a calendar year.
- ◇ Continue to hold the qualifying property as the principal residence.
- ◇ Maintain health insurance and stable and regular resources, without recourse to Malta's social assistance system.
- ◇ Pay the €15,000 minimum tax by the due date each year and file the annual tax return.
- ◇ Remain represented by an Authorised Registered Mandatary and notify relevant changes.
- ◇ Specified breaches of the conditions cause the special tax status to cease, potentially with retrospective effect.

08 — THE APPLICATION PROCESS

From instruction to special tax status

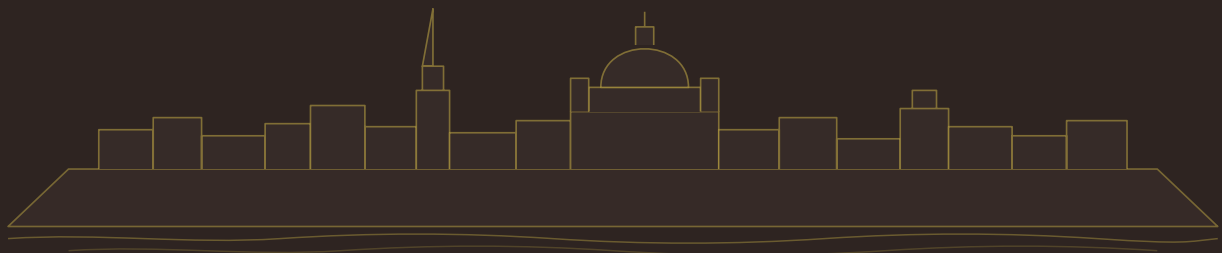
**DOCUMENTATION TYPICALLY REQUIRED**

- ◇ Certified passports, birth and marriage certificates
- ◇ Police conduct certificates
- ◇ Certified health insurance policy covering the EU
- ◇ Evidence of stable and regular resources and source of funds
- ◇ Certified final deed or registered lease agreement
- ◇ Evidence of dependency, where relevant

Apply under the current terms before 31 December 2026

An application filed by 31 December 2026 may benefit from the existing GRP rules until 31 December 2031, subject to approval and continued compliance. We advise private clients, family offices and intermediaries on the GRP and on Malta's other residence routes, and would be pleased to arrange a confidential consultation.

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Important notice. This brochure summarises the Global Residence Programme Rules (S.L. 123.148) and the transitional provisions of the Individual Tax Programme Rules, 2026 (L.N. 195 of 2026) as understood at 28 September 2026. It is provided for general information only and does not constitute legal, tax or financial advice. Fees, thresholds and conditions are set by the Government of Malta and the Commissioner for Revenue and may change without notice. The grant of special tax status and of residence permits is at the discretion of the competent authorities, and fees are non-refundable. Filing an application does not by itself secure the benefits described. Specific advice should be obtained before any application is made.